

ADMISSION, EXCLUSION OR REASSIGNMENT OF A STUDENT
PREVIOUSLY EXPELLED, LONG-TERM SUSPENDED
OR REASSIGNED TO AN ALTERNATIVE EDUCATION PROGRAM

This regulation sets forth the procedures by which a student who has been expelled by Loudoun County Public Schools (LCPS) or by a school board or a private school in Virginia or in another state; or who has been suspended from school for more than thirty days by a school board or a private school in Virginia or in another state; or for whom admission has been withdrawn by a private school in Virginia or in another state may be admitted to, or excluded from, LCPS. For the purposes of this regulation, exclusion means denial of a student's admission or readmission to LCPS.

A. Readmission or Exclusion of a Student Expelled by LCPS. A student who has been expelled by LCPS and not permitted to attend, during the expulsion, any regular LCPS school, LCPS alternative education program or LCPS adult education program, may submit a written petition for readmission to LCPS, to be effective one year after the date of expulsion. Such petition for readmission also may be submitted by the student's parent(s) or guardian(s).

1. In order to be timely, a petition must be filed no earlier than eight months and no later than ten months from the date of expulsion, with the Office of School Administration (OSA), which serves as the Superintendent's designee in matters pertaining to student discipline. Such petition may be submitted by email to lcpsosa@lcps.org or by U.S. mail to:

Office of School Administration
Attn: Director
21000 Education Court
Ashburn, VA 20148

2. The petition should include current contact information for the student and/or the student's parent(s) or guardian(s); a brief summary of the student's activities (educational and otherwise) since the date of expulsion; academic, attendance, and discipline records from any educational setting the student attended during the term of the expulsion; and documentation that demonstrates that the student has met any condition(s) for readmission imposed by the School Board at the time of expulsion.

3. OSA shall review the petition and may, at the discretion of the OSA director or hearing officer, hold a hearing regarding the petition. OSA shall issue a decision on a timely petition prior to the expiration of the expulsion period. An untimely petition may result in a delayed decision.

4. If OSA determines that the student can be readmitted to LCPS, the student may be assigned to a regular LCPS school or to an alternative or adult education program within LCPS.

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5. If OSA denies the petition, the student is excluded from LCPS.
 - a. OSA may exclude the student only after the student and/or the student's parent(s) or guardian(s) have been provided the opportunity to participate in a hearing to be conducted by OSA and upon a finding that the student: 1) failed to meet one or more of the conditions for readmission imposed by the School Board at the time of expulsion; 2) is a threat or potential threat to the safety and security of LCPS students, staff, or property as determined by a Threat Assessment team; or 3) fails to demonstrate the ability to comply with School Board policies and regulations or the code of behavior set forth in the Student Rights and Responsibilities Handbook. Such finding shall be included in the decision letter issued by OSA.
 - b. Any student who has been excluded from LCPS may petition for readmission to LCPS on an annual basis, but no earlier than eight months and no later than ten months from the date of the exclusion decision by following the procedures set forth above in Sections A.1. and A.2.

B. Exclusion of a Student Expelled or Suspended from School by Another Division or Private School. A student who has been expelled by a school board or a private school in Virginia or in another state; or who has been suspended from school for more than 30 days by a school board or a private school in Virginia or in another state; or for whom admission has been withdrawn by a private school in Virginia or in another state may admitted to, or excluded from, LCPS.

1. A student may be excluded from LCPS under the following conditions:
 - a. The student and/or the student's parent(s) or guardian(s) have been provided written notice that the student may be subject to exclusion and the reasons therefor, as well as notice of the opportunity to participate in a hearing to be conducted by OSA regarding the possible exclusion.
 - b. OSA has conducted a hearing and determined that the student presents a danger to other LCPS students or staff;

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such finding shall be included in the decision letter issued by OSA, which shall be issued within five business days of the hearing.

2. A student may be excluded from LCPS regardless of whether the student was admitted to another school division or private school subsequent to such expulsion, suspension or withdrawal of admission.
3. In the case of a suspension from school for more than 30 days, the term of exclusion shall be no longer than the duration of such suspension.
4. In the case of an expulsion or withdrawal of admission, the term of exclusion shall be determined by OSA but shall not exceed one calendar year.
 - a. In considering the exclusion of any such student from LCPS, any or all of the conditions for readmission that were imposed by the expelling school board or private school may be accepted or waived; however additional conditions for readmission to school shall not be imposed.
 - b. Upon expiration of the term of exclusion, the student and/or the student's parent(s) or guardian(s) may submit to OSA a written petition for the student's admission to LCPS using the contact information provided above in Section A.1.
 - (i) If the petition is rejected, the student and/or the student's parent(s) or guardian(s) shall be notified of the length of the continuing term of exclusion and the subsequent date upon which such student may re-petition for admission to LCPS.
 - (ii) If the student is admitted to LCPS, the student may be assigned to a regular LCPS school or to an alternative or adult education program within LCPS.
5. OSA may permit a student who has been excluded pursuant to this section to attend an LCPS alternative or adult education program for the term of such exclusion.

C. Appeal of Exclusion Decision. The decision to exclude shall be final unless altered by the School Board or a three-member committee thereof after timely written

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appeal made in accordance with Policy 8230, Procedures of Student Disciplinary Appeals to the School Board.

D. Reassignment of a Student Reassigned to an Alternative Education Program by Another Division. A student who has been reassigned to an alternative education program (rather than having been expelled or suspended for more than 30 days) by another division in Virginia or in another state may not be excluded from LCPS. However, such student may be reassigned to an LCPS alternative or adult education program under the following conditions:

1. The student and/or the student's parent(s) or guardian(s) have been provided written notice that the student will be required to attend an alternative education program and notice of the opportunity to participate in a hearing to be conducted by OSA regarding such reassignment.

2. OSA has conducted a hearing and determined that the student committed a serious offense or repeated offenses in violation of school board policies.

3. In considering the reassignment of any such student to an LCPS alternative education program, any or all of the conditions for readmission to a regular school that were imposed by the prior division may be accepted or waived.

4. The term of reassignment shall be determined by OSA but shall not exceed 45 school days unless (i) the offense is one described in Virginia Code § 22.1-277.07 or § 22.1-277.08 or involves serious bodily injury; or (ii) OSA finds the existence of aggravating circumstances as defined in Regulation 8220.1, Procedures for Short-Term and Long-Term Suspension.

5. The reassignment decision shall be final unless altered by the School Board or a three-member committee thereof after timely written appeal made in accordance with Policy 8230.

E. Transition Plan. Before any student admitted to an LCPS school or program in accordance with this regulation can begin attending the assigned LCPS setting, the Superintendent must be notified of the student's admission or readmission to LCPS and a transition plan must be developed to ensure safety and a smooth transition for the student.

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1. The transition plan shall be developed at a transition meeting, wherein the following individuals will be invited to participate: the student; the student's parent(s) or guardian(s); a representative from the LCPS Office of Safety and Security; and the following staff from the LCPS settings in which the student was last enrolled and to which the student is being assigned: principal or designee, school counselor, and special education or Section 504 case manager (if applicable).

2. Any LCPS staff identified in Section E.1. who is unable to participate in the transition meeting shall be consulted before the transition plan is finalized.

3. Other relevant LCPS staff may be invited to participate in the transition meeting.

4. With the written consent of the student and/or the student's parent(s) or guardian(s) to release to, and/or exchange confidential information with, individuals who are not employed by LCPS, such individuals may be invited to participate in the transition meeting. Such individuals include, but are not limited to, private providers and representatives of local law enforcement, court services, and the Office of the Commonwealth Attorney.

Adopted: 02/01/23

Current Revision: 09/09/25

Legal Refs.: Code of Virginia §§ [22.1-276.01](#); [22.1-277.06](#); [22.1-277.2](#); [22.1-277.2:1](#);
Policy Refs: Policy [8230](#), Procedures for Student Disciplinary Appeals to School Board;
Policy 8225, Exclusion of Students Previously Expelled or Long-Term Suspended;
[Regulation 8220.1](#), Procedures for Short-Term and Long-Term Suspension